Supreme Court Judgement: It held that all the amendments to the constitution which were made before 24 April 1973 (the date on which the court delivered its verdict in the *Kesavananda Bharati* case) and by which the Ninth Schedule was amended from time to time by the inclusion of various Acts and Regulations therein are valid. But, all the amendments made after 24 April 1973 are open to challenge on the ground that they are beyond the constituent power of the Parliament, since they damage the basic structure of the Constitution. In other words, the various amendments by which additions were made to the Ninth Schedule after 24 April 1973 will be valid only if they do not damage the basic structure of the constitution.

Shah Bano Case (1985)

Name of the Case	: Mohd. Ahmed Khan vs. Shah Bano
Year of Judgement	: 1985
Popular Name	: —
Related Topic/Issue	: Maintenance of a divorced Muslim wife
Related Article/Schedule	: —

Supreme Court Judgement: It upheld the judgement of the High Court of Madhya Pradesh. It ruled that a Muslim husband is liable to pay maintenance to the divorced wife beyond the period of iddat. It held that Section 125 of the Code of Criminal Procedure, 1973 is secular in character and applies to all religions and communities. It said that this section would prevail over the personal law, in case of a conflict between the two. It also said that Mahr (or dower) does not absolve a Muslim husband from payment of maintenance to the divorced wife. Further, it also emphasized that a uniform civil code will help the cause of national integration by removing disparate loyalties to laws which have conflicting ideologies.

Impact of the Judgement: This judgement led to the enactment of a new law called the Muslim Women (Protection of Rights on Divorce) Act, 1986. This Act overturned the above judgement by allowing the payment of maintenance to a divorced wife only during the period of iddat. In *Danial Latifi* case[12] (2001), the Supreme Court upheld the constitutional validity of this Act but held that a Muslim husband is liable to pay the maintenance to the divorced wife even after the period of iddat.

D.C. Wadhwa Case (1986)

Name of the Case	: D.C. Wadhwa vs. State of Bihar
Year of Judgement	: 1986
Popular Name	: —
Related Topic/Issue	: Ordinance-making power of the Governor
Related Article/Schedule	: 213